

TENTATIVE RULING FOR July 16, 2026

Department S22 – Judge David Driscoll

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CIVSB222391

FELICIA ALEXANDER, et al. v. MICHAEL GIAMBRA

TENTATIVE RULING

On September 29, 2022, Petitioners Felicia Alexander (Alexander) and Lynne Giambra (Lynne) filed a verified complaint against Respondent Michael Giambra (Michael) for partition of real property located at 17166 Darwin Avenue in Hesperia.

Petitioners allege Lynne owns an undivided one-half interest in the property, and Alexander and Michael each own an undivided one-quarter interest. (Compl., ¶ 3.) The 2003 grant deed names Alexander, Lynne, Angelo Giambra (deceased), and Michael as joint tenants. (Compl., ¶ 8 & Ex. A.) Petitioners further allege there is no mortgage and identify two abstracts of judgment and three state tax liens recorded against Michael, totaling approximately \$62,441.61. (Compl., ¶¶ 10, 12–17.)

Michael filed an amended answer asserting adverse possession as his sixth affirmative defense and a first amended cross-complaint to quiet title based on adverse possession.

On March 17, 2026, the Court granted summary adjudication of the affirmative defense and summary judgment on the cross-complaint, finding that Respondent had affirmed Petitioners' ownership in February 2020 and could not establish the required five-year period of adverse possession before this action was filed. The partition claim therefore is the only remaining claim.

Now before the Court is Respondent's motion re petitioner's failure to join necessary parties. He requests an order requiring joinder of the recorded lienholders and contends the case cannot proceed to trial until they have been joined. Petitioners oppose and Respondent replies.

Trial is currently set for July 20, 2026.

Legal Standard

“‘[P]artition’ is ‘the procedure for segregating and terminating common interests in the same parcel of property.’” (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 142.) Partition is a remedy “much favored by the law,” originally intended to permit cotenants to avoid the inconvenience and dissension arising from joint possession of property. (*Ibid.*)

A complaint for partition *shall* set forth: (1) a description of the property; (2) all interests the plaintiff has or claims in the property; (3) *all interests of record or actually known to the plaintiff that persons other than the plaintiff have or claim in the property and that the plaintiff reasonably believes will be materially affected by the action*; (4) the estate as to which partition is sought and a prayer for partition; and (5) where a sale is requested, facts supporting a sale rather than division in kind. (Code Civ. Proc., § 872.230, italics added.)

Code of Civil Procedure section 872.510 further provides that the plaintiff “shall join as defendants in the action all persons having or claiming interests of record or actually known to the plaintiff or reasonably apparent from an inspection of the property, in the estate as to which partition is sought.” The Legislative Committee Comment explains that an “interest” includes a lien and that additional joinder may also be required under Code of Civil Procedure section 389.

For purposes of the partition statutes, a “lien” includes a mortgage, deed of trust, or other security interest in property arising from contract, statute, common law, or equity. (Code Civ. Proc., § 872.010, subd. (b).) Section 872.420 further provides that where a defendant claims a lien, the defendant's answer must state the date and character of the lien and the amount remaining due.

Section 389, subdivision (a), requires joinder where complete relief cannot be afforded in the person's absence, or where the person claims an interest relating to the subject of the action and disposition in the person's absence may impair the person's ability to protect that interest or expose an existing party to multiple or inconsistent obligations. If such a person has not been joined, “the court shall order that he be made a party.” (Code Civ. Proc., § 389, subd. (a).)

The Court must, on its own motion or on motion of a party, make such orders for joinder of additional parties as are necessary or proper. (Code Civ. Proc., § 872.520, subd. (c).) To the extent necessary to grant the requested relief, the Court must also determine the status and priority of all liens upon the property. The Court may appoint a referee to ascertain facts necessary to make that determination. (Code Civ. Proc., § 872.630.)

In *Balkins v. County of Los Angeles* (1947) 81 Cal.App.2d 42, the Court held that where encumbrances were of record when the partition action commenced and the lienholder was not a party, the statutory procedures for protecting and determining the lienholder's interest had to be followed. The failure to observe those requirements warranted reversal of the order confirming the partition sale. (*Id.* at p. 47.)

Analysis

As a preliminary matter, Petitioners first argue that Respondent did not file the noticed motion because he filed only a memorandum. However, the defect does not warrant denial under the circumstances. The

May 21, 2026 minute order identified the subject of the contemplated motion and reserved the July 16 hearing date. Respondent's filing included "Please Take Notice" language, identified the hearing date and subject matter, and explained the relief sought. Petitioners filed an opposition addressing the merits and did not request a continuance or identify any evidence or argument they were unable to present. Any deficiency in the form of notice therefore caused no apparent prejudice.

CCP Section 872.510 requires joinder of persons holding recorded liens.

Petitioners contend lienholders need not be joined because they do not own the property or hold legal title. That argument is unpersuasive because section 872.510 is not limited to persons holding an ownership interest. It expressly requires joinder of persons claiming "interests of record," and the Law Revision Commission Comment states that an "interest" includes a lien.

The verified complaint itself alleges that FIA Card Services, LBS Financial Credit Union, and the Franchise Tax Board recorded judgment or tax liens against Michael Giambra's interest in the property. (Compl., ¶¶ 12–17.) Petitioners thus actually knew of the asserted recorded interests when they commenced the action.

Petitioners complied with section 872.230, subdivision (c), to the extent they disclosed those interests in the complaint. But disclosure is not joinder. Section 872.230 governs what must be pleaded; section 872.510 separately requires the holders of those interests to be named as defendants.

Petitioners' reliance on *Young v. Superior Court* (1940) 16 Cal.2d 211, 214, *Solomon v. Redona* (1921) 52 Cal.App. 300, 305-306, and *Ambassador Petroleum Co. v. Superior Court* (1930) 208 Cal. 667, 671-672, does not establish otherwise. Those authorities recognize circumstances in which owners or other interested persons are necessary parties, but they do not hold that recorded lienholders are excluded from section 872.510. Moreover, those cases do not address section 872.510's specific requirement that persons claiming recorded interests be joined.

Finally, *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1320-1321, does not assist Petitioners. *Grothe* explains how a money judgment creditor creates and enforces a post-judgment lien. It does not address the parties that must be joined when the encumbered property is later partitioned and sold.

The lienholders' absence affects the relief requested.

Petitioners correctly observe that the lienholders are not cotenants. Their absence nevertheless matters because Petitioners seek not only partition, but also a sale of the property, an accounting, compensatory adjustments, payment of expenses, and distribution of the proceeds. (Compl., ¶¶ 21–25 & Prayer.) Before distributing the proceeds, the Court must determine the status and priority of the liens affecting Respondent's interest. (Code Civ. Proc., § 872.630.) Moreover, a partition judgment does not affect a nonparty's claim if the claim was of record when the *lis pendens* was filed. (Code Civ. Proc., § 874.225, subd. (a).) Proceeding without the lienholders therefore could leave unresolved claims against the property or sale proceeds and prevent the Court from granting complete relief.

Balkins reinforces that the Court cannot simply disregard a recorded encumbrance when ordering and confirming a partition sale. Although *Balkins* was decided under the predecessor statutory scheme, its warning remains pertinent: failure to follow the statutory procedure for protecting a record lienholder's

interest may require reversal of the sale-confirmation order. (*Balkins v. County of Los Angeles*, *supra*, 81 Cal.App.2d at p. 47.)

Current status of the recorded interests.

Respondent establishes that the holders of current recorded liens must be joined, but the record does not establish that every lien identified in the 2022 complaint remains enforceable or is still held by the original lienholder.

The complaint identifies judgments entered in 2012 and 2014 and state tax liens recorded between 2015 and 2018. (Compl., ¶¶ 12–16.) A judgment lien generally continues for 10 years from entry of the judgment unless properly renewed. (Code Civ. Proc., § 697.310, subd. (b).) A recorded state tax lien generally continues for 10 years from the date of recordation unless sooner released or discharged, and may be extended by recording a new notice before expiration. (Gov. Code, § 7172, subs. (b), (c).) Some of the identified liens therefore may have expired, been renewed or extended, assigned, satisfied, or released during the pendency of this action.

The present record does not establish which asserted liens remain of record or who presently holds them. A current title report would identify the recorded interests and any recorded renewals, assignments, extensions, or releases.

The later recorded abstract of support judgment and lis pendens.

Respondent also identifies a 2025 abstract of support judgment in favor of Felicia Alexander. Felicia is already a party to this action and need not be joined a second time. Her asserted lien should nevertheless be identified in an amended pleading and addressed when the Court determines lien status, priority, and distribution of Michael’s share of the proceeds.

The lis pendens recorded by Petitioners’ law firm does not, standing alone, establish that the law firm claims an independent lien or ownership interest. A lis pendens gives notice that litigation affecting title or possession is pending; it does not itself create a lien. (*Integrated Lender Services, Inc. v. County of Los Angeles* (2018) 22 Cal.App.5th 867, 877.) Petitioners’ law firm therefore need not be joined based solely on its recording of the lis pendens.

Delay, requested reference, and further proceedings.

Respondent’s delay in raising joinder shortly before trial does not excuse non-compliance with section 872.510. The statute imposes the joinder obligation on the petitioners, and the Court independently must make necessary or proper joinder orders under section 872.520, subdivision (c).

Respondent’s request for a general reference under Code of Civil Procedure section 638 lacks support because the parties have not agreed to a reference, and Respondent identifies no contract or lease requiring disputes to be heard by a referee. The Court may later consider appointing a referee under section 872.630, subdivision (b), to ascertain facts necessary to determine the status and priority of the liens.

Because the current holders of the recorded interests have not yet been identified, joined, and served, the matter is not ready for trial. A continuance of the trial is therefore warranted to permit Petitioners to obtain a current title report, amend the complaint, and complete service on any newly named parties.

Petitioners’ request for attorney fees and costs.

Petitioners request attorney fees and costs incurred in opposing Respondent's memorandum, asserting that Respondent raised the joinder issue in bad faith to delay trial. Petitioners, however, identify no statutory basis for an immediate fee award, state no amount requested, and did not file a separately noticed sanctions motion. The request will therefore be denied. Any request for attorney fees incurred for the common benefit in the partition action may be addressed at the appropriate stage under Code of Civil Procedure sections 874.010 and 874.040.

TETNATIVE RULING

Respondent Michael Giambra's motion for mandatory joinder of necessary parties is granted. Respondent's request for a general reference under Code of Civil Procedure section 638 is denied.

Within 20 days, Petitioners shall obtain and lodge a current title report identifying all presently recorded interests in the property. Within 30 days, Petitioners shall file an amended complaint identifying and naming as respondents the holders of all recorded interests that may be affected by the partition sale or distribution of proceeds and shall serve any newly named defendants within 60 days of this order. Petitioners' request for attorney fees and costs is denied.

The July 20, 2026 trial is vacated. The court hereby sets this matter for a trial setting conference on November 13, 2026, at 8:30 a.m.